ARAGON PHARMACEUTICALS, INC. et al v. LUPIN LIMITED et al

Plaintiff:	ARAGON PHARMACEUTICALS, INC. and JANSSEN BIOTECH, INC.
Defendant:	LUPIN LIMITED and LUPIN PHARMACEUTICALS, INC.
Case Number:	2:2026cv12883
Filed:	October 1, 2026
Court:	U.S. District Court for the District of New Jersey
Presiding Judge:	Andre M Espinosa
Referring Judge:	Michael E Farbiarz
Nature of Suit:	Patent - Abbreviated New Drug Application(ANDA)
Cause of Action:	35 U.S.C. § 271 Patent Infringement
Jury Demanded By:	None

Date Filed	Document Text
October 1, 2026	**Filing 3** SUMMONS ISSUED as to LUPIN LIMITED, LUPIN PHARMACEUTICALS, INC.. Attached is the official court Summons, please fill out Defendant and Plaintiffs attorney information and serve. (pm,)
October 1, 2026	**Filing 2** AO120 Patent Form filed. (Attachments: #1 Initiating Documents) (pm,)
October 1, 2026	**Filing 1** COMPLAINT against LUPIN LIMITED, LUPIN PHARMACEUTICALS, INC. (Filing and Admin fee $ 405 receipt number ANJDC-18016897) , Related Case Selected, filed by ARAGON PHARMACEUTICALS, INC., JANSSEN BIOTECH, INC.. (Attachments: #1 Exhibit A, #2 Exhibit B, #3 Civil Cover Sheet)(MILLER, KEITH)
October 1, 2026	Case assigned to Judge Michael E. Farbiarz and Magistrate Judge Andre M. Espinosa. (tjg,)
October 1, 2026	CLERK'S QUALITY CONTROL MESSAGE - Please be advised, pursuant to Fed. R. Civ. P. 7.1, a disclosure statement is required to be filed by a nongovernmental corporate party or intervenor. Please refer to the Court's website at #www.njd.uscourts.gov for a form and filing

I. Executive Summary and Procedural Information

- Parties & Counsel:
  - Plaintiff: Aragon Pharmaceuticals, Inc. (Delaware) and Janssen Biotech, Inc. (Pennsylvania)
  - Defendant: Lupin Limited (India) and Lupin Pharmaceuticals, Inc. (Delaware)
  - Plaintiff's Counsel: Robinson Miller LLC
- Case Identification: 2:26-cv-12883, D.N.J., 10/01/2026
- Venue Allegations: Venue is alleged to be proper in the District of New Jersey based on Defendants' "substantial, continuous, and systematic contacts with New Jersey," including the development, manufacturing, marketing, and distribution of pharmaceutical products in the state, and the existence of regular and established places of business.
- Core Dispute: Plaintiffs allege that Defendants' submission of an Abbreviated New Drug Application (ANDA) to market a generic version of the prostate cancer drug Erleada® (apalutamide) constitutes an act of infringement of two U.S. patents covering apalutamide compositions and methods of treatment.
- Technical Context: The lawsuit concerns pharmaceutical treatments for prostate cancer, specifically targeting the androgen receptor, a key driver of disease progression.
- Key Procedural History: This is a Hatch-Waxman action initiated within 45 days of Plaintiffs' receipt of a Paragraph IV Notice Letter from Defendants. The complaint notes that the patents-in-suit are listed in the FDA's Orange Book as covering Erleada®. Plaintiffs also note a separate, pending litigation in the same district involving the same patents against a different pharmaceutical company.

Case Timeline

Date	Event
2014-12-05	U.S. Patent No. 12,303,493 Priority Date
2019-01-30	U.S. Patent No. 12,303,497 Priority Date
2025-05-20	U.S. Patent No. 12,303,493 Issue Date
2025-05-20	U.S. Patent No. 12,303,497 Issue Date

2026-08-21	Defendants submit ANDA amendment with Paragraph IV Certification
2026-08-24	Plaintiffs receive Defendants' Paragraph IV Notice Letter
2026-09-23	Defendants produce ANDA documents to Plaintiffs
2026-10-01	Complaint Filing Date

II. Technology and Patent(s)-in-Suit Analysis

U.S. Patent No. 12,303,493 - "Anticancer Compositions," issued May 20, 2025

The Invention Explained

- Problem Addressed: The patent identifies a problem with the existing formulation of the anticancer drug ARN-509 (apalutamide), which was a nonaqueous, lipid-based solution in softgel capsules. This formulation suffered from poor stability, having a shelf life of only six months and requiring cold chain storage (’493 Patent, col. 10:38-44).
- The Patented Solution: The invention is a pharmaceutical formulation comprising a "solid dispersion" of ARN-509 and a polymer, hydroxypropyl methylcellulose acetate succinate (HPMCAS) '493 Patent, abstract This solid-state formulation is designed to provide improved stability and a longer shelf life, eliminating the need for cold storage and potentially reducing the daily pill burden for patients '493 Patent, col. 10:45-54 The patent describes that this solid dispersion can be produced by methods like melt-extrusion or spray drying '493 Patent, abstract
- Technical Importance: By creating a stable, solid oral dosage form, the invention enhances the logistical feasibility and patient convenience of administering apalutamide, which may in turn improve therapeutic adherence and efficacy '493 Patent, col. 10:49-54

Key Claims at a Glance

- The complaint asserts independent claim 1 and dependent claims 16 and 18 '493 Patent, claims 1, 16, 18 Compl. ¶53
- Independent Claim 1 requires:

        - A solid dispersion comprising (ARN-509) and hydroxypropyl methylcellulose acetate succinate (HPMCAS).

U.S. Patent No. 12,303,497 - "Anti-Androgens for the Treatment of Metastatic Castration-Sensitive Prostate Cancer," issued May 20, 2025

The Invention Explained

- Problem Addressed: The patent addresses the need for more effective treatments for patients with metastatic castration-sensitive prostate cancer (mCSPC), a stage of the disease where cancer has spread but is still responsive to hormone therapy (’497 Patent, col. 1:49-62). Standard androgen deprivation therapy (ADT) is often insufficient to halt disease progression long-term.
- The Patented Solution: The invention provides a method of treating mCSPC by administering apalutamide in combination with ADT '497 Patent, abstract The patent presents clinical trial data demonstrating that this combination therapy significantly increases both overall survival and progression-free survival compared to administering a placebo with ADT '497 Patent, col. 2:9-25 '497 Patent, FIG. 2A '497 Patent, FIG. 3A
- Technical Importance: The invention establishes a new, more effective therapeutic regimen for mCSPC that improves key clinical outcomes, offering a significant advancement over the existing standard of care.

Key Claims at a Glance

- The complaint asserts independent claim 1 and dependent claim 12 '497 Patent, claims 1, 12 Compl. ¶70
- Independent Claim 1 requires:
    - A method for increasing overall survival and progression-free survival in a patient having metastatic castration-sensitive prostate cancer.
    - The method comprises administering apalutamide in a therapeutically effective amount in combination with androgen deprivation therapy to the patient.
    - The administration provides an increase in the overall survival rate relative to the overall survival rate of a population of patients with mCSPC administered a placebo in combination with androgen deprivation therapy.
    - The administration provides an increase in the progression-free survival rate of the patient relative to the progression-free survival rate of a population of patients with mCSPC administered a placebo in combination with androgen deprivation therapy.

- The administration provides (i) an increase in overall survival and a 33% reduction in risk of death or (ii) an increase in progression free survival and a 52% reduction in risk of radiographic progression or death.

III. The Accused Instrumentality

Product Identification

- The accused instrumentality is Defendants' "Proposed ANDA Product," identified as "apalutamide tablets, for oral use, 60 mg," which is a proposed generic version of Erleada® '493 Patent, abstract Compl. ¶¶2, 46

Functionality and Market Context

- The complaint alleges the Proposed ANDA Product contains a solid dispersion of apalutamide and hydroxypropyl methylcellulose acetate succinate (HPMCAS) '493 Patent, abstract Compl. ¶55 The complaint includes a diagram showing the chemical structure of apalutamide Compl. ¶55
- Plaintiffs allege that Defendants seek FDA approval to market the Proposed ANDA Product for the same indications as Erleada®, including for the treatment of mCSPC Compl. ¶¶2, 40 The commercial context is a generic drug manufacturer seeking to enter the market by offering a lower-cost equivalent of a branded drug prior to patent expiration.

IV. Analysis of Infringement Allegations

U.S. Patent No. 12,303,493 Infringement Allegations

Claim Element (from Independent Claim 1)	Alleged Infringing Functionality	Complaint Citation	Patent Citation
A solid dispersion comprising (ARN-509)	The Proposed ANDA Product contains a solid dispersion comprising apalutamide, which is also known as ARN-509.	¶55	col. 10:27-31

and hydroxypropyl methylcellulose acetate succinate (HPMCAS).	The Proposed ANDA Product contains a solid dispersion comprising hydroxypropyl methylcellulose acetate succinate, which is known as HPMCAS.	¶55	col. 10:27-31

U.S. Patent No. 12,303,497 Infringement Allegations

Claim Element (from Independent Claim 1)	Alleged Infringing Functionality	Complaint Citation	Patent Citation
A method for increasing overall survival and progression-free survival in a patient having metastatic castration-sensitive prostate cancer, said method comprising administering apalutamide in a therapeutically effective amount in combination with androgen deprivation therapy to the patient,	Plaintiffs allege that physicians and/or patients will be induced to practice the claimed method by using the Proposed ANDA Product, which will be labeled for use in treating mCSPC.	¶71; ¶72	col. 2:9-25

wherein administration of the apalutamide in combination with androgen deprivation therapy provides an increase in the overall survival rate relative to the overall survival rate of a population of patients with the metastatic castration-sensitive prostate cancer, said population having been administered a placebo...	The complaint alleges that use of the Proposed ANDA Product according to its label will result in the claimed increase in overall survival rate relative to a placebo-treated population.	¶71	col. 2:9-25
and wherein administration of the apalutamide in combination with androgen deprivation therapy provides an increase in the progression-free survival rate of the patient relative to progression-free survival rate of a population of patients with the metastatic castration-sensitive prostate cancer, said population having been administered a placebo...	The complaint alleges that use of the Proposed ANDA Product according to its label will result in the claimed increase in progression-free survival rate relative to a placebo-treated population.	¶71	col. 2:9-25

wherein administration of apalutamide in combination with androgen deprivation therapy provides (i) an increase in overall survival and a 33% reduction in risk of death or (ii) an increase in progression free survival and a 52% reduction in risk of radiographic progression or death.	The complaint alleges that use of the Proposed ANDA Product according to its label will achieve the specified clinical outcomes.	¶71	col. 2:9-25

Identified Points of Contention

- Scope Questions ('493 Patent): While the complaint's allegations are direct, a potential dispute may arise over the definition of "solid dispersion" '493 Patent, claim 1 The court may need to determine if the defendants' formulation, as described in their ANDA, meets the patent's technical definition of a solid dispersion, which could be construed narrowly as a homogenous "solid solution" or more broadly to include less uniform mixtures '493 Patent, col. 13:23-41
- Legal Questions ('497 Patent): The infringement allegation for the '497 Patent hinges on induced infringement. A primary legal question will be whether the patent's "wherein" clauses, which recite specific clinical outcomes (e.g., a "33% reduction in risk of death"), are patent-eligible limitations of the method claim that must be met for infringement to occur. This raises the question of how infringement can be proven for a claim defined by population-level statistical outcomes.

V. Key Claim Terms for Construction

'493 Patent

- The Term: "solid dispersion" '493 Patent, claim 1

- Context and Importance: This term is the central element of the asserted composition claim. Its construction will be critical because if the Defendants' formulation does not fall within the scope of this term, there is no infringement. Practitioners may focus on this term to determine if there is any non-infringement argument based on the specific physical properties of the accused generic product.
- Intrinsic Evidence for Interpretation:
    - Evidence for a Broader Interpretation: The specification defines the term broadly as "a system in a solid state... comprising at least two components, wherein one component is dispersed more or less evenly throughout the other component" '493 Patent, col. 13:23-28 This language could encompass a wide variety of physical mixtures.
    - Evidence for a Narrower Interpretation: The patent also describes a "solid solution" as a preferred, "homogenous" type of solid dispersion where the system consists of "one phase" '493 Patent, col. 13:28-34 Defendants may argue that the claims should be limited to this more specific, homogenous embodiment, especially if their product can be characterized as a less-uniform mixture.

'497 Patent

- The complaint does not provide sufficient detail for analysis of specific claim terms in the '497 Patent, as the dispute will likely center on the legal theory of inducement rather than the technical meaning of individual words.

VI. Other Allegations

Indirect Infringement

- The complaint's allegations for both patents rely heavily on theories of indirect infringement.
    - For the '493 Patent, Plaintiffs allege inducement and contributory infringement, stating that Defendants know the Proposed ANDA Product will be used to infringe and that the product is not a staple article suitable for substantial non-infringing use Compl. ¶57 Compl. ¶64 Compl. ¶66
    - For the '497 Patent, Plaintiffs allege inducement based on the assertion that Defendants' product will be "specifically labeled for use in practicing the claims" and that Defendants know and intend for physicians to prescribe the product in an infringing manner (Compl. ¶¶72-73; Compl. ¶79).

Willful Infringement

- The complaint alleges that Defendants have actual knowledge of the patents-in-suit, citing their Paragraph IV Notice Letter which discusses the patents' listing in the FDA Orange Book Compl. ¶49 Compl. ¶59 Compl. ¶75 This alleged pre-suit knowledge forms the basis for the willfulness claim and the request for enhanced damages and attorney fees Compl. Prayer for Relief ¶ F

VII. Analyst's Conclusion: Key Questions for the Case

- A core issue for the '493 patent will be one of validity: Given the direct allegations regarding the composition of the Proposed ANDA Product, infringement appears factually straightforward. The central conflict will likely revolve around Defendants' asserted defense, noted in their Paragraph IV certification, that the patent's claims are invalid over the prior art.
- A key legal question for the '497 patent will be one of induced infringement: Can Plaintiffs prove that Defendants' proposed product label will actively encourage physicians to perform a method that satisfies the claim's specific, population-based clinical outcome limitations? The case may turn on whether these "wherein" clauses are interpreted as requiring proof of a specific statistical result for every instance of infringement.
- An overarching question will be the impact of the proposed product's label: The content and language of the Defendants' final, FDA-approved label for their generic apalutamide will be critical evidence for determining whether they induce infringement of the '497 method patent and contribute to infringement of the '493 composition patent.

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IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF NEW JERSEY

ARAGON PHARMACEUTICALS, INC. and JANSSEN BIOTECH, INC., Plaintiffs, v. LUPIN LIMITED and LUPIN PHARMACEUTICALS, INC., Defendants.	Civil Action No. _____ **COMPLAINT FOR PATENT INFRINGEMENT** **(Filed Electronically)**

Plaintiffs Aragon Pharmaceuticals, Inc. ("Aragon") and Janssen Biotech, Inc. ("JBI") (collectively, "Plaintiffs"), for their Complaint against Defendants Lupin Limited ("Lupin Ltd.") and Lupin Pharmaceuticals, Inc. ("Lupin Pharm.") (collectively, "Defendants"), hereby allege as follows:

NATURE OF THE ACTION

1. This is a civil action for infringement of United States Patent Nos. 12,303,493 ("the '493 Patent") and 12,303,497 ("the '497 Patent") (collectively, the "Patents-In-Suit").
2. This action relates to the submission of Abbreviated New Drug Application No. 217084 ("the ANDA") by Defendants to the United States Food and Drug Administration ("FDA") seeking approval to market a proposed generic version of Erleada® 60 mg ("Proposed ANDA Product") prior to the expiration of the Patents-In-Suit.

THE PARTIES

3. Aragon is a corporation organized and existing under the laws of the State of Delaware, having its principal place of business at 10990 Wilshire Boulevard, Suite 440, Los Angeles, California 90024.
4. JBI is a corporation organized and existing under the laws of the Commonwealth of Pennsylvania, having its principal place of business at 800/850 Ridgeview Drive, Horsham, Pennsylvania 19044.
5. On information and belief, Lupin Ltd. is a corporation organized under the laws of India, having its principal place of business at Kalpataru Inspire, 3rd Floor, Off Western Express Highway, Santacruz (East), Mumbai 400055, Maharashtra, India.
6. On information and belief, Lupin Pharm. is a corporation organized and existing under the laws of the State of Delaware, having a principal place of business at 5801 Pelican Bay Boulevard, Suite 500, Naples, FL 34108.
7. On information and belief, Lupin Pharm. is a wholly-owned subsidiary of Lupin Ltd.

JURISDICTION AND VENUE

8. This is an action for patent infringement arising under the Patent Laws of the United States, 35 U.S.C. § 100 *et seq.*, including § 271(e)(2), and also including an action seeking declaratory judgment pursuant to the Declaratory Judgment Act, 28 U.S.C. §§ 2201-02 for patent infringement arising under 35 U.S.C. § 100 *et seq.*, including § 271(a)-(c).
9. This Court has jurisdiction over the subject matter of this action pursuant to 28 U.S.C. §§ 1331 and 1338(a).
10. Venue is proper in this judicial district pursuant to 28 U.S.C. §§ 1391 and 1400(b).
11. On information and belief, Defendants cooperate, collaborate, or act in concert for the purposes of manufacturing, selling, marketing, distributing, and importing generic drug products in New Jersey and throughout the United States.
12. On information and belief, Defendants hold themselves out as a unitary entity for purposes of manufacturing, marketing, selling, and distributing generic products in the United States. On information and belief, Defendants' "vertical integration spans from the process development of the active pharmaceutical ingredient (API) to the submission of dossiers for finished dosages." See

https://www.lupin.com/US/generics-complex-generics, last accessed October 1, 2026. Defendants also have "[i]ntegrated manufacturing." See id.

13. On information and belief, Lupin Ltd. has substantial, continuous, and systematic contacts with New Jersey.
14. On information and belief, Lupin Ltd. develops, manufactures, markets, and distributes pharmaceutical products, including generic pharmaceutical products, for sale in the State of New Jersey and throughout the United States.
15. On information and belief, Lupin Ltd., alone or together with Lupin Pharm., has committed, or aided, abetted, actively induced, contributed to, or participated in the commission of an act of patent infringement under 35 U.S.C. § 271(e)(2) that has led or will lead to foreseeable harm and injury to Plaintiffs throughout the United States, including in New Jersey.
16. On information and belief, Lupin Ltd. consented to jurisdiction, did not contest jurisdiction, or asserted counterclaims in New Jersey in one or more prior litigations, for example: *Shionogi Inc. v. Lupin, Ltd. et al.*, No. 26-cv-07831; *Takeda Pharms. U.S.A., Inc. et al. v. Lupin, Ltd. et al.*, No. 25-cv-12574; *Jazz Pharms. Ir. Ltd. v. Lupin Ltd. et al.*, No. 24-cv-08786; *Bausch & Lomb Inc. et al. v. Lupin Ltd. et al.*, No. 23-cv-00790; *Aragon Pharms., Inc. et al. v. Lupin Ltd. et al.*, No. 22-cv-02825.
17. This Court has personal jurisdiction over Lupin Ltd. by virtue of, among other things, (1) its continuous and systematic contacts with New Jersey; (2) its acts of patent infringement that will result in foreseeable harm in New Jersey; (3) its sale of a substantial volume of prescription drugs in New Jersey; and (4) its conduct by and through, and in concert with, Lupin Pharm.
18. This Court has personal jurisdiction over Lupin Ltd. because, *inter alia*, this action arises from actions of Lupin Ltd. directed toward New Jersey. For example, Defendants submitted an amendment to the ANDA seeking approval to commercially manufacture, use, sell, offer for sale, or import the Proposed ANDA Product prior to the expiration of the Patents-In-Suit. If FDA approval is obtained, the Proposed ANDA Product would be sold in New Jersey, causing injury to Plaintiffs in New Jersey.
19. Exercising personal jurisdiction over Lupin Ltd. in this district would not be unreasonable given Lupin Ltd.'s contacts in this district and the interest in this district of resolving disputes related to products to be sold herein.
20. In the alternative, this Court has personal jurisdiction over Lupin Ltd. because the requirements of Federal Rule of Civil Procedure 4(k)(2)(A) are met: (a) Plaintiffs' claims arise under federal law; (b) Lupin Ltd. would be a foreign defendant not subject to personal jurisdiction in the courts of any State; and (c) Lupin Ltd. has sufficient contacts with the United States as a whole, including, but not limited to, filing Abbreviated New Drug Applications with the FDA and manufacturing and selling generic pharmaceutical products that are distributed throughout the United States, such that this Court's exercise of jurisdiction over Lupin Ltd. satisfies due process, and is consistent with the United States Constitution and Laws.
21. Venue is proper under 28 U.S.C. § 1391(c)(3) because Lupin Ltd. is a foreign corporation.
22. On information and belief, Lupin Pharm. has substantial, continuous, and systematic contacts with New Jersey.

23. On information and belief, Lupin Pharm. develops, manufactures, markets, and distributes pharmaceutical products, including generic pharmaceutical products, for sale in the State of New Jersey and throughout the United States.
24. On information and belief, Lupin Pharm. has substantial, continuous, and systematic contacts with New Jersey, including that it is registered to do business in New Jersey (Entity Id. Nos. 0101043376 and/or 0100953673) and is registered as a drug manufacturer and/or distributor in New Jersey (Registration Nos. 5006645, 5005159, 5006859). On information and belief, the entity registered with New Jersey Department of Health with the name "LUPIN PHARMACEUTICALS INC" is another name for Lupin Pharm.
25. On information and belief, Lupin Pharm. has a regular and established business at 400 Campus Drive, Somerset, New Jersey 08873 and has registered this address with the New Jersey Department of Health. On information and belief, Lupin Pharm. operates a manufacturing and a research and development facility at this New Jersey location.
26. On information and belief, Lupin Pharm. has a regular and established business at 15 Jensen Drive, Somerset, New Jersey 08875 and has registered this address with the New Jersey Department of Health. On information and belief, Lupin Pharm. operates a distribution facility at this New Jersey location.
27. On information and belief, Lupin Pharm. has a regular and established business at 100 Somerset Corporate Boulevard, Bridgewater, New Jersey 08807. On information and belief, Lupin Pharm. has business development, commercial, marketing, and regulatory affairs teams at this New Jersey location.
28. On information and belief, Lupin Pharm., alone or together with Lupin Ltd., has committed, or aided, abetted, actively induced, contributed to, or participated in the commission of an act of patent infringement under 35 U.S.C. § 271(e)(2) that has led or will lead to foreseeable harm and injury to Plaintiffs throughout the United States, including in New Jersey.
29. On information and belief, Lupin Pharm. consented to jurisdiction, did not contest jurisdiction, or asserted counterclaims in New Jersey in one or more prior litigations, for example: *Braintree Lab'ys, Inc. et al. v. Lupin Ltd. et al.*, No. 23-cv-02853; *Aragon Pharms., Inc. et al. v. Lupin Ltd. et al.*, No. 22-cv-02825; *Horizon Orphan LLC et al. v. Lupin Ltd. et al.*, No. 20-cv-10339; and *Merck Sharp & Dohme BV et al. v. Lupin Ltd. et al.*, No. 20-cv-02786.
30. This Court has personal jurisdiction over Lupin Pharm. by virtue of, among other things, (1) its continuous and systematic contacts with New Jersey; (2) its acts of patent infringement that will result in foreseeable harm in New Jersey; (3) its sale of a substantial volume of prescription drugs in New Jersey; and (4) its conduct by and through, and in concert with, Lupin Ltd.
31. This Court has personal jurisdiction over Lupin Pharm. because, *inter alia*, this action arises from actions of Lupin Pharm. directed toward New Jersey. For example, Defendants submitted an amendment to the ANDA seeking approval to commercially manufacture, use, sell, offer for sale, or import the Proposed Abstract Product prior to the expiration of the Patents-In-Suit. If FDA approval is obtained, the Proposed ANDA Product would be sold in New Jersey, causing injury to Plaintiffs in New Jersey.

32. Exercising personal jurisdiction over Lupin Pharm. in this district would not be unreasonable given Lupin Pharm.'s contacts in this district and the interest in this district of resolving disputes related to products to be sold herein.
33. On information and belief, Lupin Pharm. has committed an act of infringement in this judicial district by submitting an amendment to the ANDA on or about August 21, 2026, to contain a Paragraph IV Certification for the Patents-In-Suit.
34. On information and belief, Defendants are cooperating, collaborating, or acting in concert with each other with respect to formulating, manufacturing, packaging, marketing, or selling with respect to the Proposed ANDA Product.
35. On information and belief, Lupin Pharm. has committed acts or caused acts to be committed in preparation for and submission of an amendment to the ANDA in this judicial district.
36. On information and belief, Lupin Pharm. will directly benefit if the ANDA is approved by participating in the distribution, offer for sale, or sale of the Proposed ANDA Product.
37. Venue is proper under 28 U.S.C. § 1400(b) because Lupin Pharm. has committed an act of infringement and has a regular and established place of business in this judicial district.

ERLEADA®

38. JBI holds approved New Drug Application No. 210951 for apalutamide, which is prescribed and sold as Erleada®.
39. On information and belief, Defendants know that JBI holds approved New Drug Application No. 210951.
40. Erleada® is indicated for the treatment of patients with non-metastatic castration-resistant prostate cancer and metastatic castration-sensitive prostate cancer. Erleada® is supplied as 60 mg and 240 mg tablets for oral administration containing the active pharmaceutical ingredient apalutamide.
41. The International Union of Pure and Applied Chemistry (IUPAC) name for apalutamide is 4-[7-(6-Cyano-5-trifluoromethylpyridin-3-yl)-8-oxo-6-thioxo-5,7-diazaspiro[3.4]oct-5-yl] -2-fluoro-N-methylbenzamide.

THE PATENTS-IN-SUIT

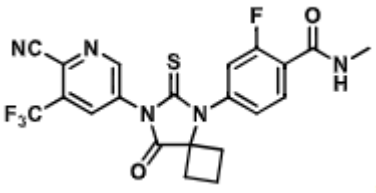
42. On May 20, 2025, the '493 Patent, titled "Anticancer Compositions," was duly and legally issued to Aragon as assignee. A copy of the '493 Patent is attached as Exhibit A.
43. On May 20, 2025, the '497 Patent, titled "Anti-Androgens for the Treatment of Metastatic Castration-Sensitive Prostate Cancer," was duly and legally issued to Aragon as assignee. A copy of the '497 Patent is attached as Exhibit B.
44. Pursuant to 21 U.S.C. § 355(b)(1), the Patents-In-Suit are listed in the FDA publication titled Approved Drug Products with Therapeutic Equivalence Evaluations (also known as the "Orange Book") as covering Erleada®.
45. On information and belief, Defendants know that the Patents-In-Suit are listed in the Orange Book as covering Erleada®.

DEFENDANTS' NOTICE LETTER AND THE ANDA

46. By letter dated August 21, 2026, addressed to JBI, Aragon, and Johnson & Johnson, and received by Johnson & Johnson on August 24, 2026 ("Notice Letter"), Defendants notified Plaintiffs that the ANDA had been amended to include a Paragraph IV Certification with respect to the Patents-In-Suit. The Notice Letter stated that the ANDA seeks the FDA approval necessary to engage in activities that constitute or require the commercial manufacture, use, sale, offer for sale in, or importation into the United States, of the Proposed ANDA Product, described in the Notice Letter as "apalutamide tablets, for oral use, 60 mg," prior to the expiration of the Patents-In-Suit.
47. The amended ANDA includes a Paragraph IV Certification that the claims of the Patents-In-Suit are invalid, unenforceable, or not infringed.
48. The Notice Letter included an Offer for Confidential Access ("OCA") to the ANDA. The parties agreed on revised terms for the OCA. On September 23, 2026, Defendants produced documents that Defendants purported were the ANDA.
49. On information and belief, Defendants have actual knowledge of the Patents-In-Suit, at least as shown by the discussion of the Orange Book listing for Erleada® in the Notice Letter.
50. On information and belief, Defendants seek to obtain FDA approval to manufacture, use, import, offer to sell, and sell their Proposed ANDA Product in the United States before the expiration of the Patents-In-Suit.
51. Plaintiffs are commencing this action within 45 days of the date of receipt of the Notice Letter.

COUNT I – CLAIM FOR INFRINGEMENT OF THE '493 PATENT

52. Plaintiffs re-allege each of the foregoing paragraphs as if fully set forth herein.
53. An actual controversy exists between the parties as to whether Defendants' proposed sales of the Proposed ANDA Product infringe the claims of the '493 Patent, including at least claims 1, 16, and 18.
54. On information and belief, the Proposed ANDA Product and the use of the Proposed ANDA Product infringe at least claims 1, 16, and 18 of the '493 Patent.
55. On information and belief, the Proposed ANDA Product infringes at least claim 1 of the '493 Patent because it contains a solid dispersion comprising apalutamide, which is a compound having the formula:



, which is also known as ARN-509, and hydroxypropyl methylcellulose acetate succinate, which is known as HPMCAS.

56. On information and belief, the Proposed ANDA Product infringes at least claims 16 and 18 of the '493 Patent because it is a pharmaceutical formulation comprising a pharmaceutically acceptable carrier and a solid dispersion comprising the compound

apalutamide and HPMCAS, wherein the formulation comprises 60 mg of apalutamide.

57. On information and belief, if the FDA approves the ANDA, Defendants will sell or offer to sell the Proposed ANDA Product specifically labeled for use in practicing the claims of the ’493 Patent, including at least claims 1, 16, and 18, wherein the Proposed ANDA Product is a material part of the claimed invention, wherein Defendants know that physicians will prescribe and patients will use the Proposed ANDA Product in accordance with the instructions or label provided by Defendants in practicing the claims of the ’493 Patent, including at least claims 1, 16, and 18, and wherein the Proposed ANDA Product is not a staple article or commodity of commerce suitable for substantial non-infringing use.
58. The Notice Letter purports to include a Notice of Certification for the ANDA under 21 C.F.R. § 314.95(c)(6) as to the ’493 Patent.
59. On information and belief, Defendants have actual knowledge of the ’493 Patent, at least as shown by the Notice Letter.
60. On information and belief, under 35 U.S.C. § 271(e)(2)(A), Defendants have infringed the claims of the ’493 Patent, including at least claims 1, 16, and 18, by submitting or causing to be submitted to the FDA, the ANDA seeking approval to manufacture, use, import, offer to sell, or sell the Proposed ANDA Product before the expiration date of the ’493 Patent.
61. On information and belief, the Proposed ANDA Product and its use, if approved and marketed, will infringe at least one claim of the ’493 Patent, including at least claims 1, 16, and 18, under at least one of 35 U.S.C. § 271(a), (b), or (c).
62. On information and belief, the manufacture, use, import, offer to sell, or sale of the Proposed ANDA Product will directly infringe the claims of the ’493 Patent, including at least claims 1, 16, and 18.
63. On information and belief, physicians and/or patients will directly infringe the claims of the ’493 Patent, including at least claims 1, 16, and 18, by the use of the Proposed ANDA Product upon approval.
64. On information and belief, upon approval, Defendants will take active steps to encourage the use of the Proposed ANDA Product by physicians and/or patients with the knowledge and intent that the Proposed ANDA Product will be used by physicians and/or patients, in a manner that infringes the claims of the ’493 Patent, including at least claims 1, 16, and 18, for the pecuniary benefit of Defendants.
65. On information and belief, Defendants specifically intend the Proposed ANDA Product to be used in a manner that infringes the claims of the ’493 Patent, including at least claims 1, 16, and 18. On information and belief, Defendants will actively induce the infringement of the claims of the ’493 Patent including at least claims 1, 16, and 18.
66. On information and belief, the Proposed ANDA Product is specifically designed for use in a manner that infringes the claims of the ’493 Patent, including at least claims 1, 16, and 18. On information and belief, Defendants will thus contribute to the infringement of the claims of the ’493 Patent, including at least claims 1, 16, and 18.
67. On information and belief, the actions described in this Complaint relating to the ANDA and the ’493 Patent were done by and for the benefit of Defendants.
68. Plaintiffs will be irreparably harmed by these infringing activities unless those activities are enjoined by this Court. Plaintiffs do not have an adequate remedy at law.

COUNT II – CLAIM FOR INFRINGEMENT OF THE ’497 PATENT

69. Plaintiffs re-allege each of the foregoing paragraphs as if fully set forth herein.
70. An actual controversy exists between the parties as to whether Defendants’ proposed sales of the Proposed ANDA Product infringe the claims of the ’497 Patent, including at least claims 1 and 12.
71. On information and belief, the use of the Proposed ANDA Product will infringe at least claims 1 and 12 of the ’497 Patent because physicians and/or patients will practice a method for increasing overall survival and progression-free survival in a patient having metastatic castration-sensitive prostate cancer, said method comprising administering apalutamide in a therapeutically effective amount in combination with androgen deprivation therapy to the patient, wherein administration of the apalutamide in combination with androgen deprivation therapy provides an increase in the overall survival rate relative to the overall survival rate of a population of patients with the metastatic castration-sensitive prostate cancer, said population having been administered a placebo in combination with an androgen deprivation therapy, and wherein administration of the apalutamide in combination with androgen deprivation therapy provides an increase in the progression-free survival rate of the patient relative to progression-free survival rate of a population of patients with the metastatic castration-sensitive prostate cancer, said population having been administered a placebo in combination with an androgen deprivation therapy, wherein administration of apalutamide in combination with androgen deprivation therapy provides (i) an increase in overall survival and a 33% reduction in risk of death or (ii) an increase in progression free survival and a 52% reduction in risk of radiographic progression or death.
72. On information and belief, Defendants will induce infringement of at least claims 1 and 12 of the ’497 Patent by actively inducing the use of the Proposed ANDA Product to practice a method for increasing overall survival and progression-free survival in a patient having metastatic castration-sensitive prostate cancer, said method comprising administering apalutamide in a therapeutically effective amount in combination with androgen deprivation therapy to the patient, wherein administration of the apalutamide in combination with androgen deprivation therapy provides an increase in the overall survival rate relative to the overall survival rate of a population of patients with the metastatic castration-sensitive prostate cancer, said population having been administered a placebo in combination with an androgen deprivation therapy, and wherein administration of the apalutamide in combination with androgen deprivation therapy provides an increase in the progression-free survival rate of the patient relative to progression-free survival rate of a population of patients with the metastatic castration-sensitive prostate cancer, said population having been administered a placebo in combination with an androgen deprivation therapy, wherein administration of apalutamide in combination with androgen deprivation therapy provides (i) an increase in overall survival and a 33% reduction in risk of death or (ii) an increase in progression free survival and a 52% reduction in risk of radiographic progression or death.
73. On information and belief, if the FDA approves the ANDA, Defendants will sell or offer to sell the Proposed ANDA Product specifically labeled for use in practicing the claims of the ’497 Patent, including at least claims 1 and 12, wherein the Proposed ANDA Product is a material part of the claimed invention, wherein Defendants know

that physicians will prescribe and patients will use the Proposed ANDA Product in accordance with the instructions or label provided by Defendants in practicing the claims of the ’497 Patent, including at least claims 1 and 12, and wherein the Proposed ANDA Product is not a staple article or commodity of commerce suitable for substantial non-infringing use.

74. The Notice Letter purports to include a Notice of Certification for the ANDA under 21 C.F.R. § 314.95(c)(6) as to the ’497 Patent.
75. On information and belief, Defendants have actual knowledge of the ’497 Patent, at least as shown by the Notice Letter.
76. On information and belief, under 35 U.S.C. § 271(e)(2)(A), Defendants have infringed the claims of the ’497 Patent, including at least claims 1 and 12, by submitting or causing to be submitted to the FDA, the ANDA seeking approval to manufacture, use, import, offer to sell, or sell the Proposed ANDA Product before the expiration date of the ’497 Patent.
77. On information and belief, the use of the Proposed ANDA Product, if approved and marketed, will infringe, either literally or under the doctrine of equivalents, at least one claim of the ’497 Patent, including at least claims 1 and 12, under at least one of 35 U.S.C. § 271(a), (b), or (c).
78. On information and belief, physicians and/or patients will directly infringe the claims of the ’497 Patent, including at least claims 1 and 12, by the use of the Proposed ANDA Product upon approval.
79. On information and belief, upon approval, Defendants will take active steps to encourage the use of the Proposed ANDA Product by physicians and/or patients with the knowledge and intent that the Proposed ANDA Product will be used by physicians and/or patients, in a manner that infringes the claims of the ’497 Patent, including at least claims 1 and 12, for the pecuniary benefit of Defendants.
80. On information and belief, Defendants specifically intend the Proposed ANDA Product to be used in a manner that infringes the claims of the ’497 Patent, including at least claims 1 and 12. On information and belief, Defendants will actively induce the infringement of the claims of the ’497 Patent, including at least claims 1 and 12.
81. On information and belief, the Proposed ANDA Product is specifically designed for use in a manner that infringes the claims of the ’497 Patent, including at least claims 1 and 12. On information and belief, Defendants will thus contribute to the infringement of the claims of the ’497 Patent, including at least claims 1 and 12.
82. On information and belief, the actions described in this Complaint relating to the ANDA and the ’497 Patent were done by and for the benefit of Defendants.
83. Plaintiffs will be irreparably harmed by these infringing activities unless those activities are enjoined by this Court. Plaintiffs do not have an adequate remedy at law.

PRAYER FOR RELIEF

WHEREFORE, Plaintiffs respectfully request that the Court enter judgment in their favor and against Defendants on the patent infringement claims set forth above and respectfully request that this Court:

A. Enter judgment under 35 U.S.C. § 271(e)(2)(A) that Defendants have infringed one or more claims of each of the Patents-In-Suit through the submission of the ANDA to the FDA

to obtain approval to manufacture, use, import, offer to sell, and sell the Proposed ANDA Product in the United States before the expiration of the Patents-In-Suit;

B. Enter a declaratory judgment that pursuant to 35 U.S.C. § 271(a), (b), and/or (c), the commercial manufacture, use, offer for sale, or sale within the United States, or importation into the United States of the Proposed ANDA Product, prior to the expiration of the Patents-In-Suit, would constitute infringement of one or more claims of each of the Patents-In-Suit under 35 U.S.C. § 271(a), (b), and/or (c);

C. Order that pursuant to 35 U.S.C. § 271(e)(4)(A), the effective date of any approval of the ANDA be a date that is not earlier than the expiration of the Patents-In-Suit, or such later date as the Court may determine;

D. Order that Defendants, their officers, agents, servants, and employees, and those persons in active concert or participation with Defendants, are preliminarily and permanently enjoined from commercially manufacturing, using, importing, offering for sale, and selling the Proposed ANDA Product, and any other product that infringes or induces or contributes to the infringement of the Patents-In-Suit, prior to the expiration of the Patents-In-Suit, or such later date as the Court may determine;

E. If Defendants engage in the commercial manufacture, use, offer for sale, sale, and/or importation into the United States of the Proposed ANDA Product prior to the expiration of the Patents-In-Suit, a judgment awarding damages to Plaintiffs resulting from such infringement together with interest;

F. Declare this to be an exceptional case under 35 U.S.C. §§ 285 and 271(e)(4) and award Plaintiffs their costs, expenses, and disbursements in this action, including reasonable attorney fees; and

G. Award such further and other relief as this Court deems proper and just.

Dated: October 1, 2026

Respectfully Submitted,

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